

Judge orders police to release surveillance camera data, raising privacy questions

The judge's ruling in a Skagit County case could affect dozens of Washington police departments using Flock technology.

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MOUNT VERNON, Wash. — Data collected by automated license plate readers used by police departments across Washington state must be made public, a judge in Skagit County ruled on Thursday.

It's a decision that could have far-reaching implications for [law enforcement surveillance practices](#).

Judge Elizabeth Yost Neidzowski of Skagit County Superior Court ruled images captured by Flock brand cameras qualified as public records subject to the state's Public Records Act, siding with a tattoo artist who had sought access to the data from multiple police agencies.

The ruling came after the cities of Sedro Woolley and Stanwood sued Jose Rodriguez in civil court to block his records requests. Both cities have since turned off their Flock camera systems.

"The Flock data do qualify as public records subject to the Public Records Act," Judge Neidzwski said in her ruling.

The case centers on a network of automated cameras mounted along busy streets in communities like Sedro Woolley, a historic logging town north of Seattle. The cameras continuously photograph passing vehicles and their occupants, ostensibly to help identify stolen cars or vehicles used in crimes.

Rodriguez, an Oregon resident who works in Walla Walla, describes himself as an ordinary citizen concerned about government overreach. He filed public records requests with dozens of Washington police agencies seeking images captured by the cameras. Many agencies complied, providing records that revealed the cameras photograph all passing vehicles indiscriminately, not just those suspected of criminal activity.

KING 5 reviewed dozens of photos taken by Flock surveillance cameras in Newcastle on Sept. 16. The images clearly show the faces and license plates of everyday drivers, not just those suspected of crimes. KING 5 has included the images below to show examples of what Flock cameras capture, but blurred people's faces and license plates for privacy.

Editor's note: A previous version of this article unintentionally left license plate numbers exposed. This gallery has been updated to protect privacy.

"I felt like that's violating my privacy, everyone's privacy, regardless if you are obeying the law," Rodriguez said. "It's not like they are a traffic light camera that takes picture of all the people that are breaking the law by speeding or whatever. It's taking pictures of every single vehicle that passes by."

Emily Guildner, an attorney representing Sedro Woolley and Stanwood, argued that releasing the images publicly would violate individuals' privacy and could enable malicious actors such as stalkers. She said the present court case involves "a fairly specific issue regarding a very valuable and effective enforcement tool."

But the judge found that the scope of Flock surveillance was "so broad and indiscriminate" — with most images capturing people not suspected of any crime — that the data must be released under public records law.

The judge said her ruling does not touch on any other controversies surrounding automated license plate readers, only the issues related to the Public Records Act.

The case follows a [University of Washington report last month](#) that found federal agents had accessed Washington's Flock camera network, possibly in violation of a state law prohibiting the use of such systems for immigration enforcement purposes.

Tim Hall, Rodriguez's attorney, said the case has revealed gaps in oversight.

"I think a lot of cities are discovering right now that we don't know who all has access to this," he said. Hall said Flock's software is more sophisticated than simple license plate readers. It

can potentially identify vehicles through make/model, bumper stickers, dents in the vehicle and roof rack.

Attorneys for the cities said they would evaluate the decision before determining their next step. Meanwhile, Flock cameras in both Sedro Woolley and Stanwood remain deactivated